NOTICE OF EQUAL EMPLOYMENT OPPORTUNITY (EO) COMPLAINTS PROCESS

Civilian (appropriated and non-appropriated) employees or applicants for employment who believe they have been discriminated against because of race, color, religion, sex (including pregnancy, gender identity, sexual orientation), national origin, disability (physical/mental), age (over 40), genetic information or retaliation/reprisal for prior EO complaint activity should contact the EO (Discrimination Complaints) Office within 45 calendar days of the date the alleged discriminatory event occurred or the effective date of the alleged discriminatory personnel action.

Pre-Complaint Process

- The aggrieved person contacts the EO Office at 623-856-7711 for information on the EO process, Negotiation & Dispute Resolution (NDR), and options available in resolving their concern. The EO counselor assigned to process informal complaints are either full-time EO counselors or permanent Luke employee volunteers trained and appointed by the Installation Commander on a collateral-duty basis. NDR Mediators are volunteers that have been trained in NDR techniques. The counselors and mediators serve as impartial third parties, and do not advocate for the parties involved.
- The counselor seeks resolution through an informal fact-finding inquiry into the discrimination claim. The counselor's inquiry includes talking with individual(s) alleged to have discriminated and witnesses with possible knowledge of the complaint issues. The mediator seeks resolution through formal mediation with the parties involved in the claim.
- If resolution is not obtained through counseling or NDR the complainant receives the notice of right to file along with the rights to file a formal complaint.
- The EO Office does not make discrimination findings or decide whether or not complaints have merit.

Formal Complaint Process

- Within 15 calendar days of receipt of the notice of right to file, a formal written complaint can be filed with 56 FW/EO.
- DoD Investigations and Resolutions Division (IRD) will investigate accepted claims and amendments to the claim.
- IRD provides a report of investigation with an analysis of the complaint.
- The complainant can request a hearing by an Equal Employment Opportunity Commission (EEOC) Administrative Judge (AJ) or a final Air Force decision.
- The AJ or the Air Force will issue a final decision, which can be appealed to the EEOC.
- After appeals are exhausted, the complainant can file a civil action.

EQUAL OPPORTUNITY OFFICE
Bldg. 1150, 2nd Fl., Room 2112
Tel: 623-856-7711
Director: Dr. Ronald S. Goodwyn

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